

SYNDICATED TERM FINANCE AGREEMENT (EXTRACT)

Fictional extract for testing. Between Thar Sun Power (Private) Limited as Borrower and the Financial Institutions listed in Schedule 1 as Lenders, with Fictional Bank Limited as Agent.

1. DEFINITIONS

1.1 "Finance Documents" means this Agreement, the Security Documents, the Intercreditor Agreement and any fee letter.

1.2 "Material Adverse Effect" means a material adverse effect on the Borrower.

1.3 "Project Documents" means the EPA, the IA, the EPC Contract and the O&M Agreement.

4. CONDITIONS PRECEDENT

4.1 The Lenders shall not be obliged to fund any Drawdown unless the Agent has received the documents listed in Schedule 2 in form and substance satisfactory to the Agent.

4.2 The Agent may waive any condition precedent with the consent of the Majority Lenders.

18. FINANCIAL COVENANTS

18.1 The Borrower shall ensure that the Debt Service Coverage Ratio for each Calculation Period is not less than 1.10:1.

18.2 The Borrower shall not make any Distribution unless the DSCR for the preceding Calculation Period is at least 1.15:1 and no Event of Default is continuing.

18.3 The Debt to Equity ratio shall not exceed 75:25 at any time.

22. EVENTS OF DEFAULT

22.1 Non-payment: the Borrower does not pay any amount due within three Business Days of its due date.

22.2 Financial covenants: any requirement of Clause 18 is not satisfied, subject to an equity cure right exercisable not more than twice during the life of the Facility.

22.3 Cross default: any Financial Indebtedness of the Borrower is not paid when due.

22.4 Material Adverse Change: any event occurs which the Majority Lenders reasonably believe has or is reasonably likely to have a Material Adverse Effect.

22.5 Acceleration: on and at any time after the occurrence of an Event of Default the Agent may, and shall if so directed by the Majority Lenders, declare all amounts outstanding immediately due.

24. CHANGE OF CONTROL

24.1 Indus Renewable Holdings Limited shall maintain at least 51% of the shares of the Borrower until the Final Maturity Date.

27. ASSIGNMENT

27.1 A Lender may assign any of its rights to another bank or financial institution with the consent of the Borrower, such consent not to be unreasonably withheld.

30. MAJORITY LENDERS

30.1 "Majority Lenders" means Lenders whose commitments aggregate more than 66.67% of total commitments.